

TRYON v. ANGELS GUN CLUB, INC.

17CV42160

CROSS-DEFENDANT'S MOTION FOR RECONSIDERATION OF ORDER GRANTING LEAVE TO THE FOURTH AMENDED CROSS-COMPLAINT

Cross-Defendant moves for reconsideration of the order granting leave to file a Fourth Amended Cross-Complaint.

The Fourth Amended Cross-Complaint (filed January 22, 2024) was filed to include as parties all Tryon family members in title to the subject real property. These persons were added to the lawsuit "as a technical matter." The latest cross-complaint was filed after a January 19, 2024, hearing where the Court granted leave to file the Fourth Amended Cross-Complaint. Cross-defendant argues for reconsideration of this ruling because cross-complainant had inexcusably delayed the request, that actual prejudice to the parties exists, and procedurally that facts in support of the motion were improperly included in the reply brief instead of the moving pleadings.

In ruling on the request to grant leave to file a Fourth Amended Cross-Complaint, the court gave great liberality to cross-complainant to file an amended pleading. (See *Cal. Gasoline Retailers v. Regal Petroleum Corp.* (1958) 50 Cal.2nd 844, 851.) However, where a would-be amendment prejudices a party with unnecessary delay in seeking amendment, the court may deny leave to file an amended pleading.

A Motion for Reconsideration is brought under Code of Civil Procedure Section 1008 and requires new law, facts or circumstances. A new law or different fact must be one that was not available to the party when the underlying motion was presented to the Court; a new or different fact is one that was not available to the party when the underlying motion was presented to the Court (*New York Times v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; see e.g., *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The Court considered the argument of unnecessary delay when it exercised its discretion to grant leave to amend; no new facts, law, or circumstances have been provided with regard to the present motion.

Motion for Reconsideration of Order Granting Leave to File Fourth Amended Cross-Complaint is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Moving party to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.